Motion for Charging Order

Plaintiffs and judgment creditors move for a charging order against the transferable interest of defendant and judgment debtor Peter Saetes pursuant to Corporations Code section 17705.03 and Code of Civil Procedure section 708.310. John Manikas, who is no longer a party to this action having been dismissed on June 17, 2025, filed an opposition.

Service is deficient as to judgment debtor Peter Saetes. According to the respective proofs of service, plaintiffs' moving papers and reply and Mr. Manikas' opposition were served on Mr. Saetes by email only. Mr. Saetes is self-represented in this action and there is no indication from the court's file that he has consented to electronic service. (Code Civ. Proc., § 1010.6, subd. (c).) Accordingly, there is insufficient evidence of effective service on judgment debtor Saetes of any of the briefing submitted for this motion for charging order.

Plaintiffs seek a charging order against Mr. Saetes' interests in two limited liability corporations: Sierra College Brace 18, LLC and Darkhorse Estates, LLC. Service of this motion appears deficient as to these entities as well, as the motion was mailed directly to the entities without any reference to any agent for service of process. No evidence is presented that either limited liability company was served by delivery to the person to whom service is authorized. Neither of these limited liability companies are or have been parties to this action nor have they otherwise appeared in this action. Service on an attorney who may represent an entity or an individual in another action would not be effective service in this action where the entities had not otherwise appeared. Plaintiffs provide no authority to support the conclusion that mailed service of this motion directly to the limited liability companies is sufficient or that anything less than personal service would be required in such a situation.

Based on the foregoing, the motion for charging order is denied without prejudice.

6. S-CV-0053679 Wilbur-Ellis Co. v. Blackbuck Orchards

Motion for Attorneys' Fees

Plaintiff moves for an award of attorneys' fees and costs incurred to enforce and collect on defendants' breach of a $250,000 application / master note / security agreement (note) and their failure to pay an ongoing credit account issued under the account application (agreement).

By prior order, on October 21, 2025, the court entered a judgment against defendants, in the amount of $229,805.98, for the first cause of action for breach of note, and $10,378.49, for the second cause of action for breach of agreement. Plaintiff moves the court to grant plaintiff's motion for attorneys' fees and costs for bringing this action.

On or about April 15, 2022, defendants executed and delivered the note. Section nine of the note obligates the defendants, to pay "all expenses reasonably incurred by lender or its agents in determining priority of, collecting, enforcing the obligations or lender's interest in the collateral, including but not limited to, reasonable attorney's fees, collection costs and legal costs with interest, when permitted by law, whether or not suit is filed, in prejudgment and post judgment enforcements.…" (Declaration of Gabriel P. Herrera ("Herrera Decl."), ⁋ 2.)

On or about March 2, 2022, the defendants executed the agreement. the agreement states that defendants "agree[] to pay all costs of collection, with or without suit, including actual out of pocket expenses incurred by [plaintiff] and its agents, including attorney's fees for litigation or bankruptcy and collection agency fees." (Herrera Decl., ⁋ 3.) The account application contains an attorney's fees provision. (Herrera Decl., ¶ 3, Exh. 2 pg 2.) Under California Civil Code § 1717, the prevailing party in an action on a contract containing such a provision is entitled to recover reasonable attorney's fees.

Plaintiff states it incurred costs of $986.20 employing registered process servers on October 10, 2024; October 14, 2024; October 21, 2024; and July 21, 2025. Plaintiff states it incurred $450.91 of filing and motion costs. The total amount of costs requested by the plaintiff is $1,437.11. (Herrera Decl., ⁋ 16.) However, plaintiff has not followed requisite procedure to obtain costs, which requires the timely filing and service of a memorandum of costs within 15 days of any party's service of notice of entry of judgment. (Cal. R. Ct., rule 3.1700(a).) Here, notice of entry of judgment was served on December 9, 2025. To the extent the court may consider plaintiff's motion to constitute a memorandum of costs, it was filed more than 15 days after service of notice of entry of judgment. Based on this procedural deficiency, the court declines to award costs as requested by plaintiff.

Plaintiff requests attorneys' fees for 61.4 hours at hourly rates between $300 and $350 an hour in the total amount of $18,512.80. A breakdown of time and work performed is included in the declaration submitted by plaintiff's counsel. (See Herrera Decl.)
The court notes this was a straightforward collections case and plaintiff's motion for summary judgment was unopposed.

The court has carefully reviewed the billing statements provided by plaintiff. The court accepts the respective billing rates of counsel as comparable to prevailing billing rates on similar matters in the community. However the court finds that not all of the time incurred on matters in this case is reasonable. The court awards plaintiff attorneys' fees in the amount of $14,500.

Plaintiff's motion for attorneys' fees is granted in part. Plaintiff is awarded attorneys' fees in the total amount of $14,500. Plaintiff's request for costs is denied as untimely.

7. S-CV-0053711 City of Lincoln v. The Gathering Inn

Plaintiff's two motions to quash and motion to compel further responses are continued to **July 7, 2026 at 8:30 a.m. in Department <u>32</u>** to be heard together with other motions in this matter by the **Honorable Trisha J. Hirashima**. Please note the change in department.